

25VECV04823 25VECV04823

County: los-angeles

Division: Civil Law and Motion

Department: B

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Case Number: 25VECV04823 Hearing Date: July 22, 2026 Dept: B

Tentative Ruling

Nowaid v. Lopez, Case no. 25VECV04823

Hearing date July 22, 2026

Plaintiff

Nowaid's Motion for Leave to Serve via Publication - UNOPPOSED

Plaintiff

Nowaid, in pro per, sues defendant Lopez for contractual fraud arising from a general partnership between plaintiff and defendant. Plaintiff filed a motion seeking leave to serve via publication on 1/26/26. The prior court, Hon. Harmon, denied the motion for failure to show diligence in attempting to serve defendant beyond making attempts at defendant's home. 3/20/26 Min. Order. Plaintiff moves again for leave to serve via publication. The motion is unopposed.

"A

summons may be served by publication if upon affidavit it appears to the satisfaction of the court in which the action is pending that the party to be served cannot with reasonable diligence be served in another manner specified in this article and that either: (1) A cause of action exists against the party upon whom service is to be made or he or she is a necessary or proper party to the action..." Code Civ. Proc. §415.50(a). An affidavit must be proffered which "must establish reasonable diligence by 'probative facts' based on personal knowledge." Olvera v. Olvera (1991) 232 Cal.App.3d 32, 42.

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motion must be accompanied by an affidavit showing the party cannot, with reasonable diligence, be served in another manner. Code Civ. Proc. §415.50(a). Service was attempted via registered process server at defendant's home address, 26881 Trestles Dr, Santa Clarita, CA 91351, seven times. Decl. Nowaid, paras. 6-7, exh. 1. Plaintiff conducted a public records search and has not identified alternative addresses for service. Id. at paras. 7-8, exh. 2. The records search identified two business entities associated with defendant; both use defendant's home address, above, as the address for service. Id. As no other possible address for service has been identified, and as defendant is being sued in his individual capacity, plaintiff satisfied the diligence requirements of Code Civ. Proc. §415.50(a).

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motion must be accompanied by an affidavit establishing either "[a] cause of action exists against the party upon whom service is to be made or he or she is a necessary or proper party to the action" or "[t]he party to be served has or claims an interest in real or personal property in this state that is subject to the jurisdiction of the court or the relief demanded in the action consists wholly or in part in excluding the party from any interest in the property." Code Civ. Proc. §415.50(a). This is a jurisdictional prerequisite. Olvera, supra, at 42, fn. 9.

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parties entered into an partnership on 9/25/21 whereby defendant was obligated to manage the partnership; plaintiff would front costs. Decl. Nowaid, paras. 3-4. Plaintiff asserts he met his obligations by providing \$16,000, and defendant breached his obligations by operating without plaintiff's approval and failing to obtain construction projects as envisioned by the partnership. Id. at para. 4. Plaintiff alleges defendant collected funds from plaintiff without intending to fulfill his obligations. Id. This is sufficient to satisfy Code Civ. Proc. §415.50(a).

Plaintiff

seeks leave to publish in the Santa Clarita Valley Signal News, a local newspaper serving defendant's address and surrounding municipality. Decl. Nowaid, para. 13. This is reasonably calculated to give defendant actual notice. GRANTED; plaintiff to publish in the SANTA CLARITA VALLEY SIGNAL NEWS as set forth under Code Civ. Proc. §415.50(b)-(c).